

SENATE No. 2859

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, December 11, 2025.

The committee on Senate Bills in the Third Reading to whom was referred the Senate Bill amending the charter of the town of Sandwich (Senate, No. 24) (also based on Senate, No. 25); reports, recommending that the same be amended as follows, and that, when so amended, it will be correctly drawn:-- by substituting a new draft entitled "An Act amending the charter of the town of Sandwich" (Senate, No. 2859).

For the committee,
Sal N. DiDomenico

SENATE No. 2859

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the charter of the town of Sandwich.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1.2 of the charter of the town of Sandwich, as appearing in section
2 2 of chapter 22 of the acts of 2014, is hereby amended by striking out the words “board of
3 selectmen”, each time they appear, and inserting in place thereof, in each instance, the following
4 words:- select board.

5 SECTION 2. Section 3.3 of said charter, as so appearing, is hereby amended by striking
6 out the words “board of selectmen” and inserting in place thereof the following words:- select
7 board.

8 SECTION 3. Section 3.4 of said charter, as so appearing, is hereby amended by striking
9 out the words “board of selectmen” and inserting in place thereof the following words:- select
10 board.

11 SECTION 4. Subsection (a) of section 3.7 of said charter, as so appearing, is hereby
12 amended by striking out the words “board of selectmen” and inserting in place thereof the
13 following words:- select board.

SECTION 5. Subsection (b) of said section 3.7 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 6. Said subsection (b) of said section 3.7 of said charter, as so appearing, is hereby amended by striking out the word “Ten” and inserting in place thereof the word:- Fifty .

SECTION 7. Said section 3.7 of said charter is hereby further amended by striking it out subsection (c), as so appearing, and inserting in place thereof the following subsection:-

(c) Any budget article on the warrant shall show comparative figures including actual figures for the preceding year, appropriations for the current year, request for the next fiscal year and amounts recommended by the finance committee. Detailed information regarding the budget numbers also shall be made available to the appropriate boards and posted on the town website for public access. For articles other than the budget that seek to raise, transfer, appropriate or expend funds, historical data, if available, shall be provided.

SECTION 8. Subsection (d) of said section 3.7 of said charter, as so appearing, is hereby amended by striking out the word “selectmen” and inserting in place thereof the following words:- the select board.

SECTION 9. Said section 3.7 of said charter, as so appearing, is hereby further amended by adding the following subsection:-

(e) A short information summary shall accompany each warrant article.

SECTION 10. Section 3.8 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen”, each time they appear, and inserting in place thereof, in each instance, the following words:- select board.

SECTION 11. Section 3.8 of said charter, as so appearing, is hereby further amended by striking out the words “section 4.2.5” and inserting in place thereof the following words:- section 4.2.5 and by other methods allowed by the General Laws.

SECTION 12. Section 4.1 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the following words:- select board.

SECTION 13. Said section 4.1 of said charter, as so appearing, is hereby further amended by striking out the words “a town clerk”.

SECTION 14. The title of section 4.2 of said charter, as so appearing, is hereby amended by striking out the words “BOARD OF SELECTMEN” and inserting in place thereof the following words:- SELECT BOARD.

SECTION 15. Section 4.2 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the following words:- select board.

SECTION 16. Said section 4.2 of said charter, as so appearing, is hereby further amended by adding the following sentence:- The select board shall possess all of the powers and duties of a select board under the General Laws.

SECTION 17. Said charter is hereby further amended by striking out section 4.2.1, as so appearing, and inserting in place thereof the following section:-

Section 4.2.1. In addition to any other qualifications prescribed by law, each member of the board shall be a qualified voter of the town and shall reside within the town while in office.

SECTION 18. Said charter is hereby further amended by striking out section 4.2.2, as so appearing, and inserting in place thereof the following section:-

Section 4.2.2. Members of the select board shall receive such compensation as may be specified in the annual budget; provided, however, that they shall be entitled to all necessary expenses incurred in the performance of their official duties upon approval by the select board.

SECTION 19. The title of section 4.2.3 of said charter, as so appearing, is hereby amended by striking out the words "CHAIRMAN AND VICE CHAIRMAN" and inserting in place thereof the following words:- CHAIR AND VICE CHAIR.

SECTION 20. Said section 4.2.3 of said charter is hereby further amended by striking out subsection (a) and (b), as so appearing, and inserting in place thereof the following 2 subsections:-

(a) A chair shall be elected by the select board at the first meeting following each regular town election. The chair shall preside at all meetings of the board. The chair shall perform such other duties consistent with the General Laws and this charter or as may be imposed on the chair by the board.

(b) A vice chair shall be elected by the select board at the first meeting following each regular town election. The vice chair shall act as chair during the disability or absence of the chair and in this capacity shall have all of the rights and duties conferred upon the chair.

SECTION 21. The first sentence of section 4.2.4 of said charter, as so appearing, is hereby amended by striking out the word “selectman” and inserting in place thereof the following words:- select board member.

SECTION 22. The second sentence of said section 4.2.4 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the following words:- select board.

SECTION 23. Said section 4.2.4 of said charter is hereby further amended by striking out the third sentence, as so appearing, and inserting in place thereof the following sentence:- If a vacancy occurs less than 8 months prior to the next annual election, the select board may call for a special election to fill the vacancy, or, notwithstanding the petition process laid out in section 10 of chapter 41 of the General Laws, the vacancy shall be filled at the next annual election.

SECTION 24. Subsection (a) of section 4.2.5 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen”, each time they appear and inserting in place thereof, in each instance, the following words:- select board.

SECTION 25. Said section 4.2.5 of said charter is hereby further amended by striking out subsection (b), as so appearing, and inserting in place thereof the following subsection:-

(b) One member of the select board may be designated to sign official payroll and vendor warrants.

SECTION 26. Subsection (c) of said section 4.2.5 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen”, each time they appear, and inserting in place thereof, in each instance, the following words:- select board.

SECTION 27. Subsection (d) of said section 4.2.5 of said charter is hereby amended by striking out the first sentence, as so appearing, and inserting in place thereof the following sentence:- No member of the select board may serve in any other elected or appointed town office or committee during that select board member’s term, excluding ex-officio positions, except that select board members may serve on town committees when authorized by state law or town by-laws.

SECTION 28. Subsection (e) of said section 4.2.5 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen”, each time they appear, and inserting in place thereof, in each instance, the words:- select board.

SECTION 29. The fourth sentence of said subsection (e) said section 4.2.5 of said charter, as so appearing, is hereby amended by striking out the words “either provide direct mailings to households or”.

SECTION 30. Subsection (f) of said section 4.2.5 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the following words:- select board.

SECTION 31. Subsection (h) of said section 4.2.5 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the following words:- select board.

114 SECTION 32. Said subsection (h) of said section 4.2.5 of said charter, as so appearing, is
115 hereby further amended by striking out the words “board of selectmen’s” and inserting in place
116 thereof the following words:- select board’s.

117 SECTION 33. Subsection (i) of said section 4.2.5 of said charter, as so appearing, is
118 hereby amended by striking out the words “board of selectmen” and inserting in place thereof the
119 following words:- select board.

120 SECTION 34. Subsection (j) of said section 4.2.5 of said charter, as so appearing, is
121 hereby amended by striking out the words “board of selectmen” and inserting in place thereof the
122 following words:- select board.

123 SECTION 35. Subsection (k) of said section 4.2.5 of said charter, as so appearing, is
124 hereby amended by striking out the words “board of selectmen” and inserting in place thereof the
125 following words:- select board

126 SECTION 36. Said subsection (k) of said section 4.2.5 of said charter, as so appearing, is
127 hereby further amended by striking out the word “selectmen”, the second time it appears, and
128 inserting in place thereof the following words:- select board members.

129 SECTION 37. Subsection (l) of said section 4.2.5 of said charter, as so appearing, is
130 hereby amended by striking out the words “board of selectmen” and inserting in place thereof the
131 following words:- select board.

132 SECTION 38. The first sentence of subsection (a) of section 4.2.6 of said charter, as so
133 appearing, is hereby amended by striking out the words “board of selectmen” and inserting in
134 place thereof the following words:- select board.

135 SECTION 39. The second sentence of said subsection (a) of said section 4.2.6 of said
136 charter, as so appearing, is hereby amended by striking out the words “fix, by resolution,” and
137 inserting in the place thereof the following word “fix”.

138 SECTION 40. Subsection (b) of said section 4.2.6 of said charter is hereby amended by
139 striking out the first sentence, as so appearing, and inserting in place thereof the following
140 sentence:- The select board may hold such special meetings as it deems necessary and
141 appropriate, which may be called by the chair or requested by a majority of board members at a
142 posted meeting of the board.

143 SECTION 41. Section 4.2.7 of said charter, as so appearing, is hereby amended by
144 striking out the words “board of selectmen”, each time they appear, and inserting in place
145 thereof, in each instance, the following words:- select board.

146 SECTION 42. Subsection (b) of said section 4.2.7 of said charter, as so appearing, is
147 hereby amended by striking out the word “selectman” and inserting in place thereof the
148 following words:- select board member.

149 SECTION 43. Subsection (c) of said section 4.2.7 of said charter, as so appearing, is
150 hereby amended by striking out the word “selectmen” and inserting in place thereof the
151 following words:- members of the select board.

152 SECTION 44. Said section 4.2.7 of said charter is hereby further amended by striking
153 out subsection (d), as so appearing..

154 SECTION 45. Section 4.2.8 of said charter is hereby amended by striking out subsection
155 (a), as so appearing, and inserting in place thereof the following subsection:-

156 (a) Except as authorized by law, no member of the select board shall hold any other town
157 office or town employment during that member's term, nor shall any former member of the
158 select board hold any compensated, appointed town office or town employment until at least 1
159 year after the expiration of such member's term on the select board.

160 SECTION 46. The first sentence of subsection (b) of said section 4.2.8 of said charter, as
161 so appearing, is hereby amended by striking out the word "selectmen" and inserting in place
162 thereof the following words:- select board.

163 SECTION 47. The second sentence of subsection (b) of said section 4.2.8 of said charter,
164 as so appearing, is hereby amended by striking out the words "board of selectmen" and inserting
165 in place thereof the following words:- select board.

166 SECTION 48. Subsection (c) of said section 4.2.8 of said charter, as so appearing, is
167 hereby amended by striking out, each time they appear, the words "board of selectmen" and
168 inserting in place thereof, in each instance, the following words:- select board.

169 SECTION 49. Section 4.3.2 of said charter, as so appearing, is hereby amended by
170 striking out the word "compensation" and inserting in the place thereof the following words:-
171 compensation unless otherwise directed by town meeting.

172 SECTION 50. The title of section 4.3.3 of said charter, as so appearing, is hereby
173 amended by striking out the words "CHAIRMAN AND VICE CHAIRMAN" and inserting in
174 place thereof the following words:- CHAIR AND VICE CHAIR.

SECTION 51. Said section 4.3.3 of said charter, as so appearing, is hereby further amended by striking out the word “chairman”, each time it appears, and inserting in place thereof, in each instance, the following word:- chair.

SECTION 52. Said charter is hereby further amended by striking out section 4.3.4, as so appearing, and inserting in place thereof the following section:-

Section 4.3.4. VACANCIES

If a vacancy occurs on the school committee, the vacancy shall be filled in the manner set forth in section 11 of chapter 41 of the General Laws by the select board and school committee. The person appointed to fill such vacancy shall serve until the next annual town election.

SECTION 53. Said charter, as so appearing, is hereby further amended by inserting after section 4.3.8 the following section:-

Section 4.3.9 PROHIBITIONS

No member of the school committee shall be employed by the Sandwich public schools during that member’s term, nor shall any former member of the school committee hold any compensated, appointed office or employment in the Sandwich public schools in the 12-month period following the expiration of their service on the school committee.

SECTION 54. Section 4.4.1 of said charter is hereby amended by striking out subsection (c), as so appearing, and inserting in place thereof the following subsection:-

(c) To assist in the application and appointment process and better prepare potential committee members, the moderator may include participation by the chair of the select board, the

195 chair of the finance committee or the chair of the school committee, or their designated
196 representatives.

197 SECTION 55. Said section 4.4.1 of said charter, as so appearing, is hereby further
198 amended by adding the following subsection:-

199 (e) The moderator shall use reasonable efforts, including utilization of technology and
200 other means such as electronic voting, at town meeting in the interest of conducting official
201 business in an efficient manner.

202 SECTION 56. Article IV of said charter, as so appearing, is hereby amended by striking
203 out section 4.5.

204 SECTION 57. Section 4.6 of said charter, as so appearing, is hereby amended by striking
205 out the words “to a 3-year term” and inserting in place thereof the following words:- for a term
206 of 3 years.

207 SECTION 58. Section 4.6.2 of said charter is hereby amended by striking out the second
208 sentence, as so appearing, and inserting in place thereof the following sentence:- The board of
209 library trustees shall, except in case of those employees subject to chapter 150E of the General
210 Laws, appoint the director of the library and may enter into a contract with said director;
211 provided, however, that such contract shall meet minimum legal standards established by the
212 select board and town manager.

213 SECTION 59. Said section 4.6.2 of said charter, as so appearing, is hereby further
214 amended by striking out the third sentence.

SECTION 60. Section 4.6.3 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the following words:- select board.

SECTION 61. Section 4.7 of said charter, as so appearing, is hereby amended by striking out, each time they appear, the words “board of selectmen” and inserting in place thereof, in each instance, the following words:- select board.

SECTION 62. Said subsection (a) of said section 4.7 of said charter is further amended by inserting after the third sentence, as so appearing, the following sentence:- Each board or committee may select a member to hold the position of presiding officer or chair for no more than 2 consecutive years, excluding the time served filling the unexpired term of the previous chair.

SECTION 63. Subsection (b) of said section 4.7 of said charter is hereby amended by striking out the first sentence, as so appearing, and inserting in place thereof the following sentence:- Members of committees shall be either elected for staggered terms of 3 years or appointed for a specified period as determined by the select board, unless otherwise provided for by the General Laws or this charter.

SECTION 64. Section 5.1.1 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen”, each time they appear, and inserting in place thereof, in each instance, the following words:- select board.

SECTION 65. Said section 5.1.1 of said charter, as so appearing, is hereby further amended by striking out the words “and need not, when appointed, be a resident of the town of Sandwich; provided however, that the town manager shall establish such residence within 6

237 months following the effective date of appointment and provided further that the board of
238 selectmen may, by a unanimous vote of all members of the board of selectmen then in office,
239 extend to a time certain the time for establishing residence or waive this requirement in its
240 entirety”.

241 SECTION 66. Section 5.1.2 of said charter, as so appearing, is hereby amended by
242 striking out the words “board of selectmen”, each time they appear, and inserting in place
243 thereof, in each instance, the following words:- select board.

244 SECTION 67. Section 5.1.3 of said charter, as so appearing, is hereby amended by
245 striking out the words “board of selectmen”, each time they appear, and inserting in place
246 thereof, in each instance, the following words:- select board.

247 SECTION 68. Section 5.1.4 of said charter, as so appearing, is hereby amended by
248 striking out the words “board of selectmen”, each time they appear, and inserting in place
249 thereof, in each instance, the following words:- select board.

250 SECTION 69. Clause (a) of said section 5.1.4 of said charter, as so appearing, is hereby
251 amended by striking out the words “shall be required for appointment of department heads and
252 the assistant town manager” and inserting in place thereof the following words:- shall be required
253 for the town manager to appoint department heads and the assistant town manager.

254 SECTION 70. Clause (f) of said section 5.1.4 of said charter, as so appearing, is hereby
255 amended by striking out the word “selectmen”, the second time it appears, and inserting in place
256 thereof the following words:- select board.

SECTION 71. Clause (i) of said section 5.1.4 of said charter, as so appearing, is hereby amended by striking out the figure “\$1,000,000” and inserting in place thereof the following figure:- \$1,500,000.

SECTION 72. Clause (n) of said section 5.1.4 of said charter is hereby amended by striking out in the second sentence, as so appearing, the words “a municipal light department or”.

SECTION 73. The second sentence of clause (n) of said section 5.1.4 of said charter, as so appearing, is hereby amended by striking out the words “for any other department, but the amount transferred from 1 department to another shall not exceed 3 per cent of the annual budget of the department from which the transfer is made, with the approval of the selectmen and finance committee” and inserting in place thereof the following words:- for any other department. The town manager shall provide written notice to the select board and the finance committee within 10 working days of the transfer.

SECTION 74. Clause (p) of said section 5.1.4 of said charter, as so appearing, is hereby amended by striking out the words “at the end of the fiscal year” and inserting in place thereof the following words:- and the finance committee within a reasonable time after the close of the fiscal year.

SECTION 75. Section 5.1.5 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen”, each time they appear, and inserting in place thereof, in each instance, the following words:- select board.

SECTION 76. Section 5.2 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen”, each time they appear, and inserting in place thereof, in each instance, the following words:- select board.

279 SECTION 77. The first paragraph of article VI of said charter, as so appearing, is hereby
280 amended by striking out the words “section 10 of chapter 66 of the General Laws” and inserting
281 in the place thereof the following words:- sections 10 and 10A of chapter 66 of the General
282 Laws, addressing public records and management.

283 SECTION 78. Section 7.1 of said charter, as so appearing, is hereby amended by striking
284 out the words “board of selectmen”, each time they appear, and inserting in place thereof, in each
285 instance, the following words:- select board.

286 SECTION 79. Said section 7.1 of said charter is hereby further amended by striking out
287 subsection (a), as so appearing.

288 SECTION 80. Subsection (b) of said section 7.1 of said charter, as so appearing, is
289 hereby amended by inserting after the words “town manager” the following words:- after
290 consultation with the school superintendent.

291 SECTION 81. The first sentence of said subsection (c) of said section 7.1 of said charter,
292 as so appearing, is hereby amended by striking out the words “school committee” and inserting
293 in the place thereof the following words:- school committee and finance committee.

294 SECTION 82. Said section 7.1 of said charter is hereby further amended by striking out
295 subsection (g), as so appearing, and inserting in place thereof the following subsection:-

296 (g) Within a reasonable time after the close of the fiscal year, the select board shall meet
297 in joint session with the school committee and the finance committee to identify, review and
298 strategize about any issues, projects or plans that might affect budgeting and budget assumptions
299 for the next two fiscal years .

SECTION 83. Subsection (d) of section 7.2 of said charter, as so appearing, is hereby amended by striking out the word “chairman” and inserting in place thereof the following word:- chair.

SECTION 84. Section 7.3 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen”, each time they appear, and inserting in place thereof, in each instance, the following words:- select board.

SECTION 85. The first sentence of section 7.5 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the following words:- select board.

SECTION 86. Said section 7.5 of said charter is hereby further amended by striking out the third sentence, as so appearing, and inserting in place thereof the following sentence:- Upon completion of the audit, the results in a summary form of the results shall be posted on the town website, with hard copies placed on file in the office of the town clerk and in the Sandwich public library.

SECTION 87. Said charter is hereby further amended by striking out sections 8.1 and 8.2, as so appearing, and inserting in place thereof the following 2 sections:-

Section 8.1 RECALL

A holder of an elected office in the town of Sandwich may be recalled therefrom by the qualified voters of the town as provided in this section for reasons which shall include, but are not limited to, the following: embezzlement; influence peddling; refusal to comply with clause Twenty-sixth of section 7 of chapter 4 of the General Laws (protection of information in public

records), sections 10 and 10A of chapter 66 of the General Laws (public records requests), sections 18 to 25, inclusive, of chapter 30A of the General Laws (open meeting law) or chapter 268A of the General Laws (conflict of interest) or any rules and regulations thereto and the by-laws of the town of Sandwich that pertain to the same; destruction or alteration of public records; nepotism; conviction for a felony; failure to perform the duties of the elected office; or other willful acts of omission or commission which betray the public trust.

SECTION 8.2 RECALL PROCESS

(a) Any 10 qualified voters of the town of Sandwich may file with the town clerk an affidavit containing the name of the officer sought to be recalled and a statement of the grounds for recall. The town clerk shall thereupon deliver to the voters making such affidavit a sufficient number of copies of petition blanks demanding such recall, printed forms of which the town clerk shall keep on hand. The blanks shall be issued by the town clerk with the town clerk's signature and official seal attached thereto and shall be dated and addressed to the select board of the town. Said blanks shall contain the name of the person to whom issued, the number of blanks to be issued, the name of the person sought to be recalled, the office from which removal is sought, the grounds for recall as stated in the affidavit and shall demand the election of a successor to such office. A copy of the petition shall be entered in a record book to be kept in the office of the town clerk. The recall petition shall be returned and filed with the town clerk within 20 days after the filing of the affidavit. The petition, before being returned and filed, shall be signed by 25 per cent of qualified voters in the town and to every signature shall be added the place of residence of the signer, giving both the street and number. The recall petition shall be submitted to the town clerk not later than 3:00 p.m. on the Friday preceding the day which it

343 must be filed, to the registrars of voters in the town, and the registrars shall forthwith certify
344 thereon the number of signatures which are names of voters of the town.

345 (b) If the petition is found and certified by the town clerk to be sufficient, the town clerk
346 shall submit the petition with the town clerk's certification to the select board, without delay, and
347 the select board shall forthwith give written notice of receipt of the certificate to the officer
348 against whom recall is being sought. If the officer does not resign within 5 days of such notice,
349 the select board shall order an election to be held on a date fixed by them not less than 60 days
350 and not more than 90 days after the date of the town clerk's submission of the petition to the
351 select board; provided, however, that if another town election is to occur within 100 days after
352 the date of the certificate, the select board may, in their discretion, postpone the holding of the
353 recall election to the date of such other election. If a vacancy occurs in the office sought to be
354 recalled after a recall election has been so ordered, the election shall nevertheless proceed as
355 provided herein.

356 (c) Any officer sought to be removed may be a candidate to succeed themselves and the
357 town clerk shall place their name on the ballot without nomination, unless such officer requests
358 in writing not to have their name on the ballot. The nomination of other candidates, the
359 publication of the warrant for the recall election and the conduct of the same shall all be in
360 accordance with the provisions of law relating to elections, unless otherwise provided by this
361 charter.

362 (d) The incumbent shall continue to perform the duties of the office until the recall
363 election. If reelected, the incumbent shall continue in the office for the remainder of the
364 unexpired term, subject to recall as before, except as provided in this charter. If not reelected in

the recall election, the incumbent shall be deemed removed upon the qualification of their successor, who shall hold office for the remainder of the unexpired term. If the successor fails to qualify within 5 days after receiving notification of their election, the incumbent shall thereupon be deemed removed and the office vacant.

(e) Ballots used in a recall election shall submit the following propositions in the order indicated: For the recall of (name of officer) Against the recall of (name of officer) Immediately at the right of each proposition, there shall be a square in which the voter, by making a cross mark (X), may vote for either of the propositions. Under the proposition shall appear the word "Candidates", the directions to voters required by section 42 of chapter 54 of the General Laws, beneath this the names of candidates nominated as hereinbefore provided. If a majority of the votes cast upon the question of recall is in the affirmative, the candidate receiving the highest number of votes shall be declared elected; provided, however, that at least 40% of those entitled to vote shall have voted. If a majority of votes on the question is in the negative, the ballot for candidates need not be counted.

(f) No recall petition shall be filed against an officer within 6 months after they take office, nor, in case of an officer subject to a recall election and not recalled thereby, until at least 6 months after the election at which their recall was submitted to the voters.

SECTION 88. Said charter is hereby further amended by striking out section 9.3, as so appearing, and inserting in place thereof the following section:-

Section 9.3 CHARTER REVIEW COMMITTEE.

At least every 10 years, or sooner if deemed necessary by the select board, the select board shall appoint a charter review committee to be composed of 7 members. The charter

review committee shall within 6 months of its appointment, or by such other date as determined by the select board, submit a report of its findings and recommendations and file proceedings of their deliberations with the select board.

SECTION 89. Section 9.5 of said charter, as so appearing, is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the following words:- select board.

SECTION 90 Said charter is hereby further amended by striking out section 9.6, as so appearing.

SECTION 91. Notwithstanding any general or special law to the contrary, the position of elected town clerk in the town of Sandwich shall be abolished upon the effective date of this act and the term of the elected incumbent terminated; provided, however, that the elected incumbent shall then become the first appointed town clerk and shall serve in that capacity for a period of time equivalent to the remainder of the elected term or sooner resignation, retirement or removal. Thereafter, appointments to the position of town clerk, as a department head position, shall be made by the Town Manager with the approval of the select board pursuant to section 5.1.4(a) of article V of the charter of the town of Sandwich.

SECTION 92. This act shall take effect upon its passage.